



West Bengal State Electricity Distribution Company Limited

(A Government of West Bengal Enterprise)

Registered Office : Vidyut Bhaban, Block - DJ, Sector - II, Bidhannagar, Kolkata - 700 091.

CIN : U40109WB2007SGC113473; website : www.wbsedcl.in

Circular No. : 03/2017

Dated : 15-02-2017

Sub : Monitoring of Legal cases

With the objective to reduce the number of pending suits/cases before the Hon'ble High Court, Other Ld. Courts, Tribunals etc. a high level meeting was held on 02.02.2017 & 03.02.2017 to ascertain the actual number & status of pending cases at different forums. Considering the gravity of the issue the matter is regularly being monitored by the Principal Secretary, Deptt. of Power & NES, Govt. of West Bengal.

While reviewing the status of court cases pending against the company at different Ld.court/forums, it has been noticed that, many cases are included in the pending category without any latest updation and apparently with a little monitoring from the Divisional/Regional/Zonal Offices. As a result, on the one side a huge amount of revenue is stuck up due to non follow up and /or non closure of the cases and on the other side company is incurring a good quantum of expenditure for maintaining those cases.

It has been noticed during review of the status of the pending cases that there is a good number of old cases involving issues like new connections, bill disputes etc. are still showing in the pending list of the court cases, though the cause of disputes for which such cases filed, either do not exist anymore or settled in the meantime.

Under the circumstances it has been decided that the HR&A officers of Divisional/Regional/Zonal Offices should be more careful and pay adequate time & attention in monitoring the progress of court cases in different Ld. courts/forums under their respective jurisdiction.

The Ld. Advocates engaged on behalf of WBSEDCL should be interacted in regular manner and all efforts should be taken to dispose of the pending cases as quickly as possible.

The suits where no claim /relief lies against WBSEDCL but the name of the company has been made as a party, appropriate steps may be taken from Divisional/Regional/Zonal Offices for expunging the name of the company from those suits in consultation with the Ld. Conducting Advocates.

It is further impressed upon that the Empowered Committee of Divisional level should explore to settle the long pending cases related to new connection, bill disputes etc. for out of court in cases where ever practicable so that the number of pending cases may be reduced and the legal expenditure of the company may also be brought down substantially.

A monthly report of pending court cases as on 25th day of the respective months should be submitted by the HR&A officers of Division/Region/Zone Offices to the Corporate Legal Cell at email id: wbsedcl.legal@gmail.com for effective assessment by at Corporate Legal Cell by the last day of the same month so that we may not fail to submit our consolidated report to the Power & NES Deptt., Govt. of West Bengal by 1st day of each month as emphasized by the Power & NES Deptt. . The legal cell intern will also conduct periodical (quarterly) meeting with the site offices for ascertaining the actual status of court cases at different court/forums.

To begin with all the HR&A Officers of Zones/Regions/Division Offices are requested to submit their report as on 25th February, 2017 by 28th February, 2017.

This order takes immediate effect.


15.02.2017 -
(Sujay Sarkar)
Director (HR)